

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Casey McCann	Team: Squad #11	CCRB Case #: 201807073	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 08/25/2018 1:05 PM	Location of Incident: 30th Precinct Stationhouse	Precinct: 30	18 Mo. SOL 2/25/2020	EO SOL 2/25/2020	
Date/Time CV Reported Sun, 08/26/2018 7:05 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 08/26/2018 7:05 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Robin Taveras	01073	939835	030 PCT
2. LT Benjamin Gottlieb	00000	921389	030 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Josue Navarodriguez	25255	963178	030 PCT
2. POM George Layng	06732	911985	030 PCT
3. POM Dimitrios Sotiriou	03690	949684	030 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Robin Taveras	Abuse: Sergeant Robin Taveras issued a summons to § 87(2)(b)	
B.LT Benjamin Gottlieb	Abuse: Lieutenant Benjamin Gottlieb threatened to arrest § 87(2)(b)	

Case Summary

On August 26, 2018, § 87(2)(b) filed this complaint with the CCRB online.

On August 25, 2018, at approximately 1:05 p.m., at the 30th Precinct stationhouse, Sergeant Robin Taveras of the 30th Precinct issued a summons to § 87(2)(b) (**Allegation A: Abuse of Authority,** § 87(2)(g) Lieutenant Benjamin Gottlieb of the 30th Precinct threatened to arrest § 87(2)(b) (**Allegation B: Abuse of Authority,** § 87(2)(g) § 87(2)(b) was issued a summons for disorderly conduct.

Body-worn camera footage was obtained for this incident, which will be discussed in further detail below.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Robin Taveras issued a summons to § 87(2)(b)

The investigation established the following facts:

On August 21, 2018, § 87(2)(b)'s parked vehicle was involved in a motor vehicle accident. A notice was taped to § 87(2)(b)'s vehicle from an autobody garage, Tow-Arrific, offering to make repairs to § 87(2)(b)'s vehicle. § 87(2)(b) contacted Tow-Arrific, brought his vehicle to the shop, and signed a contract to make repairs.

§ 87(2)(b) later performed several Google searches for Tow-Arrific and learned that they had been criminally indicted for insurance fraud. § 87(2)(b) decided he no longer wanted Tow-Arrific to do work on his car.

On the morning of August 24, 2018, § 87(2)(b) went to Tow-Arrific and saw his vehicle parked on the street. There was a “temporary bumper” affixed to § 87(2)(b)'s car. § 87(2)(b) used a spare key to remove his car from Tow-Arrific and brought it to a new body garage, Body Pro, located at 547 West 133rd Street in Manhattan.

On August 25, 2018, at approximately 9:37 a.m. an employee of Tow-Arrific called the police, as he had found § 87(2)(b)'s vehicle at Body Pro. An officer contacted § 87(2)(b) and asked him to come to Body Pro, which § 87(2)(b) did. § 87(2)(b)'s vehicle was at the top of the hill inside of Body Pro at this time.

When § 87(2)(b) arrived, a dispute ensued regarding § 87(2)(b) paying Tow-Arrific for the services rendered and parts ordered. § 87(2)(b) refused to pay without seeing an invoice and could not produce the cash Tow-Arrific requested. When Sgt. Taveras arrived, he tried to resolve the civil matter between § 87(2)(b) and Tow-Arrific, but was unsuccessful in getting both parties to come to an agreement. § 87(2)(b) refused to let the Tow-Arrific employees take his vehicle out of Body Pro and back to Tow-Arrific to settle the dispute. § 87(2)(b) stood behind his vehicle preventing it from being reversed out of Body Pro. § 87(2)(b) was then placed in handcuffs, removed to the 30th Precinct stationhouse, and ultimately released with a summons for disorderly conduct.

According to § 87(2)(b) (BR 04), before removing his vehicle from Tow-Arrific, he spoke to an employee of Tow-Arrific, § 87(2)(b) who said that no work was done on § 87(2)(b)'s car; if § 87(2)(b)'s car “looked different,” it was because it was prepared for the insurance adjustor. § 87(2)(b) told § 87(2)(b) he owed \$300 in storage fees, which § 87(2)(b) agreed to pay. § 87(2)(b) then increased the price for storage and demanded he pay in cash.

§ 87(2)(b) contacted an insurance agent, § 87(2)(b) who said that § 87(2)(b) had the right to move his car to another garage. § 87(2)(b) also contacted the

32nd Precinct and spoke to an officer over the phone, who said if § 87(2)(b)'s car was parked on the street, he could take it. § 87(2)(b) did so.

On August 25, 2018, § 87(2)(b) was en route to the airport when he was contacted by § 87(2)(b) an employee of Body Pro. § 87(2)(b) said that employees from Tow-Arrific were at Body Pro and demanding § 87(2)(b)'s car and that police were already on scene. § 87(2)(b) spoke to a police officer over the phone, who requested that he come to Body Pro.

Upon his arrival, § 87(2)(b) spoke to PO Josue Nava-Rodriguez and PO Dimitrios Sotiriou, both of the 30th Precinct, and informed them of the situation and why he took his vehicle. PO Nava-Rodriguez and PO Sotiriou told § 87(2)(b) the issue was likely a civil matter, but that they wanted to speak to a supervisor. § 87(2)(b)'s mother, § 87(2)(b) was also on scene at this time.

30 minutes later, Sgt. Taveras and Police Officer George Layng of the 30th Precinct arrived. Sgt. Taveras and PO Layng initially agreed that the issue was a civil matter. Sgt. Taveras stepped away and spoke to the employees of Tow-Arrific, and, after returning, told § 87(2)(b) that he “signed over the rights” to his car on the contract he signed, and it was a crime for § 87(2)(b) to remove it from Tow-Arrific’s possession.

Sgt. Taveras said he saw an invoice proving that Tow-Arrific did work on § 87(2)(b)'s car, and if he agreed to pay for it, the situation would be over. § 87(2)(b) explained that Tow-Arrific would only accept cash, which § 87(2)(b) could not produce. Sgt. Taveras told § 87(2)(b) he had no choice but to let the Tow-Arrific employees take his car back to their garage.

§ 87(2)(b) then stood behind his car and told Sgt. Taveras to arrest him if he committed a crime in taking his car from Tow-Arrific. Sgt. Taveras told PO Nava-Rodriguez to place § 87(2)(b) in handcuffs. PO Nava-Rodriguez then placed § 87(2)(b) into a police vehicle, where he was held for approximately one hour. PO Nava-Rodriguez and PO Sotiriou then transported § 87(2)(b) to the 30th Precinct stationhouse, where § 87(2)(b) was lodged. Approximately one hour later, § 87(2)(b) was released with a summons for disorderly conduct.

In PO Nava-Rodriguez’s body-worn camera footage (see below), § 87(2)(b) stands at the back of his vehicle inside Body Pro and repeatedly tells Sgt. Taveras, “No,” and, “If you have to arrest me, then that’s what you do,” to which Sgt. Taveras responds, “Unfortunately that’s what’s gonna ... Put him in handcuffs” <<11:47:04 – 11:47:12>>. § 87(2)(b) then stands in front of § 87(2)(b) and tells the officers to arrest her. Sgt. Taveras says, “We’re not trying to do this,” while the other officers tell § 87(2)(b) and § 87(2)(b) that they do not want to arrest them. § 87(2)(b) says, “You said it was a crime. You said that I took [the car] illegally. That would make it a crime, right?” Sgt. Taveras says, “Put him in handcuffs” <<11:48:01 – 11:48:06>> to which § 87(2)(b) replies, “Put me in handcuffs then. Arrest me.” PO Nava-Rodriguez asks Sgt. Taveras, “We going or we’re not going?” Sgt. Taveras says, “Yeah. Put him in handcuffs.” PO Nava-Rodriguez handcuffs § 87(2)(b) <<11:48:26 – 11:48:33>>. The video captures approximately five people inside the garage, standing near a blue car, watching § 87(2)(b)'s arrest <<11:48:44>> (BR 05-06).



PO Nava-Rodriguez BWC Subclip.mp4

According to Sgt. Taveras (BR 07), when he arrived on scene, he spoke to PO Nava-Rodriguez, PO Sotiriou, § 87(2)(b) and the Tow-Arrific employees regarding the incident.

Sgt. Taveras tried to work with § 87(2)(b) and the Tow-Arrific employees to find a solution to the civil matter, but was unsuccessful. § 87(2)(b) had not committed a crime, including vehicle theft or theft of service, in removing his vehicle from Tow-Arrific.

After speaking with § 87(2)(b) and the Tow-Arrific employees for approximately an hour and a half to try to make an agreement, § 87(2)(b) still refused to bring his car back to Tow-Arrific to pay for services rendered or allow a Tow-Arrific employee to drive his car back to their garage. § 87(2)(b) stood behind his vehicle to prevent one of the Tow-Arrific employees from moving his car and yelled, “Fuck off. You can’t tell me what to do.”

The owner of Body Pro approached Sgt. Taveras and told him he wanted both § 87(2)(b) and his vehicle to be removed from his garage, as he was disrupting his business and making his employees want to leave. Sgt. Taveras told § 87(2)(b) multiple times to move away from his vehicle, but he did not comply and continuously yelled, “Arrest me.” Because § 87(2)(b) yelled and cursed, Sgt. Taveras decided to arrest him for disorderly conduct. Until § 87(2)(b) began yelling and cursing, the dispute was solely a civil matter. § 87(2)(b) also could have been arrested for obstruction, but Sgt. Taveras did not think § 87(2)(b)’s behavior warranted a misdemeanor charge. Sgt. Taveras planned that § 87(2)(b) would ultimately be released with a summons. At no point during the incident did § 87(2)(b)’s behavior present a hazardous condition or any kind of safety concern.

Sgt. Taveras ran warrant checks for § 87(2)(b) on scene, but his phone was unable to conduct a “detailed” warrant check, which can be performed on a desktop. Because of § 87(2)(b)’s behavior throughout the incident and because Sgt. Taveras needed to conduct detailed warrant checks, PO Nava-Rodriguez and PO Sotiriou transported § 87(2)(b) to the 30th Precinct stationhouse, where Sgt. Taveras told PO Nava-Rodriguez to issue § 87(2)(b) a summons for disorderly conduct and release him.

Sgt. Taveras reviewed PO Nava-Rodriguez’s body-worn camera footage and confirmed that the group of people in the background at the 11:48:42 time stamp are Body Pro employees. Sgt. Taveras did not remember if other civilians besides the ones depicted at this time were present.

PO Nava-Rodriguez (BR 13) was generally consistent with Sgt. Taveras, though he added that Tow-Arrific employees had called a tow truck to remove § 87(2)(b)’s vehicle from Body Pro. By standing in front of his vehicle, § 87(2)(b) created a hazardous condition by preventing the tow company from accessing to his vehicle. PO Nava-Rodriguez made no mention of § 87(2)(b) yelling or cursing throughout the incident.

According to the Command Log (BR 08), § 87(2)(b) arrived at the stationhouse at 12:18 p.m. and was released with a summons at 1:05 p.m.

The summons (BR 09) issued by PO Nava-Rodriguez for disorderly conduct at 1:05 p.m. cites subsection 7 of the disorderly conduct statute. In the “Factual Allegations” section, PO Nava-Rodriguez writes, “The undersigned observed the deft. in a public establishment with intent to cause a hazardous condition by preventing a contracting body shop to finish their work. Deft.’s actions did cause a crowd to gather.”

A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm creates a hazardous or physically offensive condition by any act which serves no legitimate purpose. New York State Penal Law 240.20(7) (BR 10).

The validity of disorderly conduct charges has turned on the presence or absence of adequate proof of public harm. People v. Baker 20 N.Y.3d 354 (2013) (BR 11).

In People v. Munafo, the court found that because spectators of the incident between the defendant and the police were small in number and the defendant did not try to involve the spectators, the court found that the differences between the police officers and defendant were confined to the two disputants rather than spread to the public. People v. Munafo 50 N.Y.2d 326 (1980) (BR 12).

§ 87(2)(g)

§ 87(2)(g)

Allegation (B) Abuse of Authority: Lieutenant Benjamin Gottlieb threatened to arrest

§ 87(2)(b)

According to § 87(2)(b) (BR 04), once he was released, he approached the desk where Lt. Gottlieb handed him a disorderly conduct “slip.” Lt. Gottlieb told § 87(2)(b) “If you don’t show up for this date, we will arrest you.” § 87(2)(b) then left the stationhouse.

Lt. Gottlieb (BR 14) said that he was working at the desk when PO Nava-Rodriguez and Sgt. Taveras entered the stationhouse with § 87(2)(b) who was charged with disorderly conduct. Sgt. Taveras made the decision that § 87(2)(b) would be released with a criminal court summons for disorderly conduct. PO Nava-Rodriguez prepared the summons and gave it to

§ 87(2)(b)

As § 87(2)(b) was leaving the stationhouse, Lt. Gottlieb informed § 87(2)(b) that he had to appear on or before the listed court date on the summons, otherwise a warrant would be issued for his arrest. § 87(2)(b) then left the stationhouse.

If after the service of a summons the defendant does not appear in the designated local criminal court or superior court at the time such summons is returnable, the court may issue a warrant of arrest. New York State Criminal Procedure Law 130.50 (BR 15).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 03).
- Sgt. Taveras has been a member of service for 12 years and has been a subject in one prior CCRB complaint and two allegations, none of which was substantiated § 87(2)(b)

- Lt. Gottlieb has been a member of service for 20 years and has been a subject in 12 prior CCRB complaints and 20 allegations, of which five were substantiated:
 - 200502082 involved substantiated allegations of abuse – question and/or stop and abuse – search (of person). The Board recommended charges and the NYPD imposed instruction.
 - 200703956 involved a substantiated allegation of force – nonlethal restraining device. The Board recommended Command Discipline and the NYPD imposed the forfeiture of 15 vacation days.
 - 201110991 involved a discourtesy – word allegation. The Board recommended charges and the NYPD did not impose discipline.
 - 201707177 involved an allegation of abuse – refusal to process civilian complaint. The Board recommended Command Discipline A and the NYPD has not yet imposed discipline.
 - § 87(2)(g) [REDACTED]

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of October 4, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (BR 01).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]
[REDACTED]

Squad No.: _____

Investigator:	_____ Signature	_____ Print Title & Name	_____ Date
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Squad Leader:	_____ Signature	_____ Print Title & Name	_____ Date
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Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date
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